

CHAPTER - 9

Governor

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The Governor is merely appointed by the President which really means, by the Union Council of Ministers. The Governor holds office during the pleasure of the President, there is no security of his tenure. He can be removed by the President at any time. There is no impeachment process for removal of Governors as prescribed in constitution in the case of President.

The powers of Governors

Executive Powers of Governor

- The Governor appoints the Chief Minister who enjoys the support of the majority in the Vidhan Sabha.
- The Governor also appoints the other members of the Council of Ministers & distributes portfolios to them on the advice of the Chief Minister.
- He/she also appoints the Advocate General & the chairman & members of the State Public Service Commission.
- The Governor appoints the judges of the District Courts.

Legislative Powers of Governor

- Summons the sessions of both houses of the state legislature & prorogues them.
- Inaugurates the state legislature by addressing it after the assembly elections & also at the beginning of the first session every year.
- Can even dissolve the Vidhan Sabha. These powers are formal & the Governor while using these powers must act according to the advice of the Council of Ministers headed by the Chief Minister.
- The Governor's address on these occasions generally outlines new policies of the state Government.
- A bill that the state legislature has passed can become a law only after the Governor gives assent.
- Can return a bill to the state legislature, if it is not a money bill, for reconsideration.

- Has the power to reserve certain bills for the President.
- When the state legislature is not in session & the Governor considers it necessary to have a law, then the Governor can promulgate ordinances.

Financial Powers of Governor

- Money bills can be introduced in the State Legislative Assembly only on the prior recommendation of the Governor.
- Governor also causes to be laid before the State Legislature the annual financial statement which is the State Budget.
- Further no demand for grant shall be made except on his/her recommendation.
- He can also make advances out of the Contingency Fund of the State to meet any unforeseen expenditure.
- Governor constitutes the State Finance Commission.

Discretionary Powers of Governor

There are situations when the Governor has to act as per his/her own judgment & take decisions on his own.

Such powers are called discretionary Powers:

- When no party gets a majority in the Vidhan Sabha, the Governor can either ask the leader of the single largest party or the consensus leader of two or more to form the Government. The Governor then appoints the leader of the largest party to Chief Minister.
- The Governor can send a report to the President informing him or her that the State's constitutional functioning has been compromised & recommending the President impose "President's rule" upon the state.
- Governor can reserve any Bill for the President.

Governor's power of Veto

When a Bill is presented before the Governor after its passage by the house(s) of the state legislature, the Governor may take any of the following steps:

1. He may declare his assent to the Bill
2. He may declare that he withholds his assent to the Bill
3. He may (in case of a Bill other than money Bill), return the Bill with a message
4. The Governor may also reserve a Bill for the consideration of President

The President enjoys absolute veto in the case of Bills reserved for him by the Governors. The president may act in the following manner:

1. In case of money Bill President may either declare his assent or withhold his assent.
2. In the case of Bills other than money Bill the President apart from declaring his assent or refusing it, direct the Governor to return the Bill to the Legislature for recommendations in such cases.